A FREE, PLAIN-SPOKEN GUIDE



When Banks Cheat You

What Regulators Found, and How to Protect Yourself and Get Your Money Back

Fake accounts • Junk fees • Overdrafts
Disputes • Complaints • Settlement money

D.A. Williams

When Banks Cheat You

A Plain-Spoken Guide to What Regulators Found at Wells Fargo, Bank of America, Chase, Citi, and Others, and How to Protect Yourself and Get Your Money Back

D.A. Williams

Published by Red Pills of Freedom

Free to share. Please pass it on to someone who needs it.

Dedicated to Mom, Janis Fredlund

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Published by Red Pills of Freedom.

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This book is for general education. It is not legal or financial advice. The descriptions of what banks did come from official records: orders, press releases, and agreements published by federal agencies. Where a bank did not admit wrongdoing, this book says so. Facts and figures are as they appeared in October 2026. Phone numbers and websites can change. **Always look up an organization's contact information yourself.**

The short scenes marked "Example" in this book are made up to show how a problem can happen. They are not stories about real people or real banks.

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INTRODUCTION

Why This Book

Most of us trust our bank without thinking about it. The public record shows that trust is not always earned, and not just at one bank.

In 2016, the Consumer Financial Protection Bureau (CFPB) fined Wells Fargo $100 million after finding that bank employees had secretly opened deposit and credit card accounts that customers never asked for.[1] In 2023, the CFPB found that Bank of America had opened credit card accounts without customers' knowledge, charged repeat fees for the same declined transaction, and withheld promised rewards.[12] In 2022, the CFPB found that U.S. Bank employees had opened credit cards, lines of credit, and deposit accounts without consumers' knowledge and consent.[22] Regulators have also found problems with add-on products at Chase, Citi, and Capital One, and with overdraft fees at TD Bank, Regions, and Navy Federal Credit Union. You will find each of these in this book, with the source.

Chapters 1 through 5 tell you what regulators found, bank by bank, sticking to the official record, and end with a summary table. Chapters 6 through 11 are the

practical part: how to spot accounts and charges you never agreed to, your rights, how to dispute a charge and file a complaint, how to find settlement money safely, and how to switch banks. You need your statements, a phone, and a little patience.

A word about fairness

Banks are run by people, and many bank employees do honest work. This book is not about any one employee, and it does not say any bank is cheating customers today. It reports what government agencies found about specific practices during specific years, and what each bank agreed to. Many of these orders have since ended. When a bank “neither admitted nor denied” the findings, this book tells you that too.

The point is not anger. The point is that these things happened at large, well-known banks, so it pays to check your own accounts.

CHAPTER 1

How to Read a Bank Enforcement Action

When a regulator takes action against a bank, the news usually reports one big number. To understand what happened, it helps to know a few terms.

Who the regulators are

Several federal agencies watch over banks. Which one supervises your bank depends on how the bank is set up.[36]

- **The Consumer Financial Protection Bureau (CFPB)** enforces federal consumer financial laws. It supervises banks and credit unions with more than $10 billion in assets, among others.[36]
- **The Office of the Comptroller of the Currency (OCC)** supervises national banks and federal savings associations.[36]
- **The Federal Reserve** supervises state-chartered banks that are members of the Federal Reserve System.[36]

- **The Federal Deposit Insurance Corporation (FDIC)** supervises state-chartered banks that are not Federal Reserve members.[36]
- **The National Credit Union Administration (NCUA)** oversees federally chartered credit unions.[36]
- **State banking departments** supervise state-chartered banks.[37]
- **The Department of Justice (DOJ)** brings criminal and civil cases, and **the Securities and Exchange Commission (SEC)** protects investors.

What a "consent order" is

Most bank cases end in a **consent order**. That is an order the bank agrees to, instead of fighting the case in court. It usually lists what the regulator found, what the bank must stop doing, what it must fix, and what it must pay.

Many consent orders say the bank agreed to the order **"without admitting or denying"** the findings. For example, Capital One's 2012 order says the CFPB "finds, and the Bank neither admits nor denies," the violations.[20] U.S. Bank's 2022 order uses similar language.[23] That means the bank accepted the order and its penalties but did not formally admit the findings. This book always says "regulators found" for that reason.

A few cases go further. In 2020, Wells Fargo **admitted** a detailed statement of facts as part of its agreements with the Justice Department.[5]

Penalty versus redress

Two kinds of money show up in these cases:

- **A civil money penalty** is a fine paid to the government. CFPB penalties go into its Civil Penalty Fund, which can be used to pay victims who are not fully paid back by the company.[43]
- **Redress** (also called restitution or remediation) is money paid back to harmed customers.[43]

When you read that a bank "paid $3.7 billion," look closer. Part of it may be refunds to customers, and part may be a fine.

Orders can end

Consent orders do not last forever. A regulator can end, or "terminate," an order when the bank has done what it required, and in some cases earlier. In 2025, the CFPB terminated several orders, as you will see in Chapter 3. In some of those, the CFPB noted the bank had already paid its penalty and made refunds. In at least one, the termination also ended the refund obligation.[30]

CHAPTER 2

Wells Fargo

Wells Fargo is one of the largest banks in the country, and it has faced several major federal enforcement actions over its treatment of customers. Here is the record in order.

2016: Accounts customers never asked for

On September 8, 2016, the CFPB fined Wells Fargo Bank $100 million for "the widespread illegal practice of secretly opening unauthorized deposit and credit card accounts."[1]

According to the CFPB:[1]

- "Spurred by sales targets and compensation incentives," employees opened accounts and funded them "by transferring funds from consumers' authorized accounts without their knowledge or consent."
- According to the bank's own analysis, employees opened roughly **1.5 million deposit accounts** and applied for roughly **565,000 credit card accounts** that may not have been authorized.

- Employees issued and activated debit cards without consent, “going so far as to create PINs without telling consumers.”
- Employees created “phony email addresses” to enroll customers in online banking.
- Some customers were charged overdraft or insufficient-funds fees because money had been moved out of their real accounts.

Wells Fargo had to refund affected customers, hire an independent consultant, and pay the $100 million fine. It also paid a $35 million penalty to the OCC and $50 million to the City and County of Los Angeles. At the time, the CFPB called the $100 million “the largest penalty the CFPB has ever imposed.”[1]

2018: The Federal Reserve caps the bank’s growth

On February 2, 2018, the Federal Reserve announced it would “restrict the growth of the firm until it sufficiently improves its governance and controls.” The Fed cited “widespread consumer abuses and other compliance breakdowns.”[2]

Under the order, Wells Fargo could not grow “any larger than its total asset size as of the end of 2017” until it made sufficient improvements. The Fed said the cap would not stop the bank from taking deposits or making

loans. Wells Fargo also agreed to replace three board members by April and a fourth by year-end.[2]

This limit became known as the "asset cap." It stayed in place for more than seven years. (See "2025" below.)

2018: Forced auto insurance and mortgage rate-lock fees

On April 20, 2018, the CFPB and the OCC announced a coordinated settlement with Wells Fargo over two practices. The CFPB assessed a $1 billion penalty and credited the $500 million penalty collected by the OCC toward it.[3]

Forced auto insurance. When you take out a car loan, the lender requires you to keep insurance on the car. If the lender thinks you let it lapse, it can buy insurance and charge you for it. This is called "force-placed" or "collateral protection" insurance. The CFPB's order found:[4]

- From 2011 to 2016, Wells Fargo "caused hundreds of thousands of consumers to be charged substantial premiums—typically just over $1,000 a policy—for unnecessary or duplicative Force-Placed Insurance."
- When borrowers couldn't pay those charges, "they faced additional fees and, in some instances, experienced delinquency, loan default, and even repossession."

- "From 2011 to 2016, Respondent acknowledges that for at least 27,000 customers, the additional costs of the Force-Placed Insurance could have contributed to a default that resulted in the repossession of their vehicle."

Mortgage rate-lock fees. When you apply for a mortgage, the lender can "lock" your interest rate for a set time. If closing is delayed, the lock may be extended for a fee. The order found that from September 16, 2013, through February 28, 2017, Wells Fargo "inappropriately charged certain borrowers rate-lock-extension fees that should have been absorbed by" the bank under its own policy.[4]

2020: $3 billion and an admission

On February 21, 2020, the Justice Department announced that Wells Fargo had agreed to pay **$3 billion** to resolve criminal and civil investigations and an SEC case over its sales practices.[5]

The DOJ said that between 2002 and 2016, pressure "to meet unrealistic sales goals" led "thousands of employees to provide millions of accounts or products to customers under false pretenses or without consent, often by creating false records or misusing customers' identities."[5]

This time, Wells Fargo admitted the facts. According to the DOJ, the bank admitted it "collected millions of

dollars in fees and interest to which the Company was not entitled, harmed the credit ratings of certain customers, and unlawfully misused customers' sensitive personal information."[5]

The admitted facts included forging customer signatures, "creating PINs to activate unauthorized debit cards," moving money from millions of customer accounts into unauthorized accounts (called "simulated funding" inside the bank), and "altering customers' true contact information" so they would not learn of the accounts.[5]

The criminal part was resolved with a three-year **deferred prosecution agreement**: the bank would not be prosecuted if it met certain conditions. The $3 billion included a **$500 million civil penalty** in the SEC case, which the SEC was to distribute to investors.[5,6]

2022: $3.7 billion for auto loans, mortgages, and deposit accounts

On December 20, 2022, the CFPB ordered Wells Fargo to pay **more than $2 billion in redress** to consumers and a **$1.7 billion civil penalty**, for a total of $3.7 billion. The CFPB said the conduct affected "over 16 million consumer accounts."[7]

According to the CFPB, Wells Fargo:[7]

- Had "systematic failures" in servicing car loans, causing "$1.3 billion in harm across more than 11

million accounts." The bank "incorrectly applied borrowers' payments, improperly charged fees and interest, and wrongfully repossessed borrowers' vehicles."

- "Improperly denied thousands of mortgage loan modifications" over at least seven years, "which in some cases led to Wells Fargo customers losing their homes to wrongful foreclosures."
- Charged "surprise overdraft fees," meaning fees "charged even though consumers had enough money in their account to cover the transaction at the time the bank authorized it."
- "Froze more than 1 million consumer accounts based on a faulty automated filter's determination that there may have been a fraudulent deposit." Affected customers could not reach any of their money "for an average of at least two weeks."

The order required refunds of more than $1.3 billion for auto loan accounts, more than $500 million for deposit accounts (including $205 million for surprise overdraft fees), and nearly $200 million for mortgage accounts.[7]

The CFPB called Wells Fargo "a repeat offender."[7]

2025: The asset cap is lifted

On June 3, 2025, the Federal Reserve announced that Wells Fargo "is no longer subject to the asset growth restriction." The Fed said the bank "has met all the

conditions required by the 2018 enforcement action for removal," including improving governance and risk management and completing a third-party review. The Fed added that "the other provisions in the 2018 enforcement action will remain in place until the bank satisfies the requirements for their termination."[8]

What the Wells Fargo record teaches

Three lessons stand out for ordinary customers:

1. **Unauthorized accounts can sit unnoticed.** The DOJ said employees changed customers' contact information so they would not find out.[5] Checking your credit report and ChexSystems report (Chapter 6) is how you catch this.
2. **Charges tied to a loan can snowball.** A $1,000 insurance charge you did not need can lead to late fees, default, and repossession.[4] Read every loan statement, not just the payment amount.
3. **A frozen account is a real emergency.** If your bank freezes your money, act the same day (Chapter 8).

CHAPTER 3

Bank of America, Chase, Citi, Capital One, U.S. Bank, TD Bank, Regions, and Navy Federal

Wells Fargo is not alone. This chapter covers official enforcement actions against other large banks and one large credit union. Each section says what the regulator found, what the bank agreed to, and what it paid. In most of these cases, the bank agreed to the order without admitting or denying the findings.

Bank of America

2022: Frozen unemployment benefits. During the pandemic, Bank of America delivered unemployment benefits for 12 states on prepaid debit cards.[11] On July 14, 2022, the CFPB fined the bank $100 million and the OCC fined it $125 million, for a combined $225 million.[9]

The CFPB found that, from fall 2020 into mid-2021, the bank replaced reasonable investigations of fraud claims with “a fraud filter with a simple set of flags that automatically triggered an account freeze.” The CFPB

said people "were on hold for hours every day for weeks trying to talk to someone at the bank." The order required the bank to pay redress the CFPB estimated would total "hundreds of millions of dollars."[9] The CFPB also found that the bank's failure to reasonably investigate cardholders' error claims violated the Electronic Fund Transfer Act and Regulation E, the same rules that protect you (Chapter 7).[10]

2023: Repeat fees, withheld rewards, and unauthorized accounts. On July 11, 2023, the CFPB ordered Bank of America to pay more than $100 million to customers, plus $90 million in penalties to the CFPB. The OCC separately fined the bank $60 million.[12]

According to the CFPB, Bank of America:[12]

- Charged customers $35 after declining a transaction for insufficient funds, and "allow[ed] fees to be repeatedly charged for the same transaction."
- "Illegally withheld promised credit card account bonuses, such as cash rewards or bonus points, to tens of thousands of consumers."
- From at least 2012, to meet sales goals, had employees who "illegally applied for and enrolled consumers in credit card accounts without consumers' knowledge or authorization," and used customers' credit reports without permission to do it.

The CFPB's announcement also noted that in 2014 it had ordered Bank of America to pay $727 million in redress for illegal credit card practices.[12]

JPMorgan Chase

On September 19, 2013, the CFPB ordered Chase Bank USA and JPMorgan Chase Bank to refund an estimated **$309 million** to more than **2.1 million** customers.[13]

The agencies found Chase charged customers for credit card "add-on" products like "identity theft protection" and "fraud monitoring" that were not being performed. Chase charged monthly fees of $7.99 to $11.99 "even though the promised services were not performed," from October 2005 to June 2012. Some customers went over their credit limits because of these fees and paid more fees and interest as a result.[13] The OCC issued its own order on the same practices.[14] The CFPB order was later terminated.[15]

Citi

On July 21, 2015, the CFPB ordered Citibank and two affiliates to provide an estimated **$700 million** in relief to about 8.8 million consumer accounts and to pay **$35 million** in civil penalties.[17]

The CFPB found deceptive marketing, billing, and administration of credit card add-on products, including "debt protection" and credit monitoring products. It said

roughly 7 million accounts were affected by those practices, and a Citi subsidiary "deceptively charged expedited payment fees to nearly 1.8 million consumer accounts during collection calls."[17] Citi consented "without admitting or denying any wrongdoing."[18]

Capital One

On July 18, 2012, the CFPB announced its **first public enforcement action**. It required Capital One to refund about **$140 million** to two million customers and pay a **$25 million** penalty.[19]

The CFPB found that Capital One's call-center vendors used "deceptive marketing tactics" to sell add-on products like "payment protection" and "credit monitoring" when people called to activate new cards. According to the CFPB, some customers were misled into thinking the products would raise their credit scores, were not told the products were optional, were sold payment protection while already unemployed or disabled and so could not get all its benefits, or were enrolled "without their consent."[19] In 2016, the CFPB terminated the order after finding the bank had paid the refunds and penalty.[21]

U.S. Bank

On July 28, 2022, the CFPB fined U.S. Bank **$37.5 million**.[22] The order found that, "in response to sales pressure or to obtain incentive rewards," bank

employees "opened deposit accounts, submitted applications for and issued credit cards, and opened lines of credit linked to deposit accounts without consumers' knowledge and consent." The order covered 2010 through 2020 and said these practices "involved a small percentage" of the bank's new accounts.[23]

On August 21, 2025, the CFPB terminated the order. It noted U.S. Bank had paid the $37.5 million penalty, issued redress payments, and taken steps to prevent future violations.[22]

TD Bank

2020: Overdraft enrollment. On August 20, 2020, the CFPB ordered TD Bank to pay an estimated **$97 million** in restitution and a **$25 million** penalty. The CFPB found the bank charged overdraft fees on ATM and one-time debit card transactions "without obtaining their affirmative consent," and made "misleading representations" when offering its overdraft service.[24]

2024: A guilty plea on money laundering controls. This case is about the bank's anti-money-laundering program, not about fees, but it is one of the largest bank cases on record. On October 10, 2024, TD Bank pleaded guilty and agreed to pay over $1.8 billion to resolve a Justice Department investigation into Bank Secrecy Act and money laundering violations.[25] The DOJ said 92% of TD Bank's transaction volume went unmonitored from

January 2018 to April 2024, about $18.3 trillion, and called it "the largest bank in U.S. history to plead guilty to Bank Secrecy Act program failures."[25] TD also reached separate agreements with the Federal Reserve, the OCC, and FinCEN.[25] TD Bank Group said the total payment was "approximately US$3.09 billion," and that the assets of its two U.S. banks cannot exceed $434 billion.[26]

Regions Bank

On September 28, 2022, the CFPB ordered Regions Bank to pay **$191 million**: at least $141 million in refunds and a $50 million penalty.[27] The order found that from August 2018 through July 2021, Regions "generated at least $141 million" in "Authorized-Positive Overdraft Fees." Those are fees charged on transactions approved when the customer had enough money, which later overdrew the account.[28]

On July 21, 2025, the CFPB terminated the order. It noted Regions had paid the $50 million penalty and issued payments to consumers under the redress plan.[27]

Navy Federal Credit Union

Credit unions are not automatically immune. On November 7, 2024, the CFPB issued an order against Navy Federal Credit Union over surprise overdraft fees. The CFPB's announcement described more than $95 million in payments.[29] The Associated Press reported that this included refunds of about $80 million.[31]

On July 1, 2025, the CFPB terminated the order and "waive[d] any alleged non-compliance therewith," including the payment obligations in the order's redress section.[30] The AP reported that Navy Federal "will no longer have to refund $80 million."[31] A Navy Federal spokesperson told Reuters the credit union "complied with all applicable laws and regulations at the time."[32]

CHAPTER 4

The Summary Table

This table lists the cases in this book. “Found” means what the agency found or the bank admitted, as described in the source. Money figures are as announced. Some orders have since been terminated (see Chapter 3).

Bank	Year	Agency	What regulators found (short)	Money	Source
Capital One	2012	CFPB	Deceptive sales of card add-on products	~$140M refunds + $25M penalty	[19]
JPMorgan Chase	2013	CFPB, OCC	Charged for identity-protection services not performed	~$309M refunds	[13]
Citi	2015	CFPB	Deceptive add-on marketing; unfair billing; deceptive collection fees	~$700M relief + $35M penalty	[17]
Wells Fargo	2016	CFPB, OCC, L.A.	Secretly opened	$100M + $35M + $50M	[1]

Bank	Year	Agency	What regulators found (short)	Money	Source
			unauthorized accounts	penalties; refunds	
Wells Fargo	2018	Federal Reserve	Consumer abuses, compliance breakdowns; growth capped (lifted 2025)	Asset cap	2
Wells Fargo	2018	CFPB, OCC	Unneeded forced auto insurance; improper rate-lock fees	$1B penalty (incl. $500M OCC); refunds	3
Wells Fargo	2020	DOJ, SEC	Millions of accounts opened without consent (admitted)	$3B, incl. $500M SEC penalty	5
TD Bank	2020	CFPB	Overdraft fees without affirmative consent	~$97M restitution + $25M penalty	24
Bank of America	2022	CFPB, OCC	Froze unemployment benefit cards with faulty fraud filter	$225M penalties; redress	9
U.S. Bank	2022	CFPB	Accounts and cards opened without consent	$37.5M penalty; redress	22

Bank	Year	Agency	What regulators found (short)	Money	Source
Regions	2022	CFPB	Surprise overdraft fees	$141M+ refunds + $50M penalty	27
Wells Fargo	2022	CFPB	Auto loan, mortgage, and deposit account harms	$2B+ redress + $1.7B penalty	7
Bank of America	2023	CFPB, OCC	Repeat NSF fees; withheld rewards; unauthorized cards	$100M+ redress + $150M penalties	12
TD Bank	2024	DOJ and others	Anti-money-laundering failures (guilty plea)	$1.8B+ to DOJ; ~$3.09B total	25
Navy Federal CU	2024	CFPB	Surprise overdraft fees (order terminated 2025)	$95M+ announced; obligations ended	29

CHAPTER 5

The Patterns, and What Has Changed Since

Put the cases side by side and the same few problems keep showing up.

Pattern 1: Accounts you never opened

Wells Fargo, Bank of America, and U.S. Bank were each found to have opened accounts or cards without customers' consent, tied to sales goals or incentive pay.[5,12,23] In some cases, regulators found the banks pulled customers' credit reports without permission to do it.[12]

What to do: Check your credit reports and your ChexSystems report (Chapter 6).

Pattern 2: Add-ons you didn't want or didn't get

Capital One, Chase, and Citi were each found to have problems with credit card "add-on" products like payment protection and credit monitoring.[19,13,17]

What to do: Read each credit card statement line by line. Look for monthly charges with names like "protection," "monitoring," or "plan." If you didn't ask for it, call and cancel, and dispute it in writing (Chapter 8).

Pattern 3: Overdraft and "junk" fees

TD Bank, Regions, Wells Fargo, Navy Federal, and Bank of America were each found to have charged overdraft or insufficient-funds fees in ways regulators found unlawful.[24,28,7,29,12]

What to do: Learn your bank's overdraft settings. According to the CFPB, "for one-time debit card transactions and ATM withdrawals, banks cannot charge you an overdraft fee unless you opt in." Banks can still charge overdraft fees on checks and recurring payments. If you opted in and changed your mind, "just notify them that you no longer want this coverage."[35] TD Bank's 2020 order was about charging these fees without that consent.[24]

Pattern 4: Frozen accounts and automated filters

Bank of America froze unemployment benefit cards, and Wells Fargo froze more than a million accounts, based on automated fraud filters that regulators found faulty.[9,7]

What to do: Keep a second account at a different institution with enough money for a few weeks of basics,

if you can. If you are frozen out, file a written dispute and a CFPB complaint the same day (Chapter 8).

What has changed since

Some protections described in this book are weaker or gone. You should know this before you rely on them.

- **Overdraft rule overturned.** In December 2024, the CFPB issued a rule on overdraft fees at very large banks and credit unions. On May 9, 2025, Congress and the President overturned it under the Congressional Review Act. The law says the rule "shall have no force or effect."[33]
- **Arbitration rule overturned.** In 2017, the CFPB issued a rule limiting how banks could use arbitration clauses to block class actions. On November 1, 2017, Congress overturned it the same way.[34] (More in Chapter 10.)
- **Orders ended early.** In 2025, the CFPB terminated several consent orders, including those against U.S. Bank, Regions, and Navy Federal.[22,27,30]

What has *not* changed: the core laws that protect your accounts. The Electronic Fund Transfer Act (Regulation E), the Fair Credit Billing Act, and the Fair Credit Reporting Act still give you the rights described in Chapter 7. Using those rights is up to you, and this book shows you how.

CHAPTER 6

How to Spot Accounts and Charges You Never Agreed To

You can check for the problems in these cases yourself, for free.

Step 1: Pull your three credit reports

Your credit reports list your credit cards, loans, and lines of credit, plus recent "inquiries" from companies that pulled your report.

- Go to **AnnualCreditReport.com**. The FTC says the three national credit bureaus (Equifax, Experian, and TransUnion) have "permanently extended a program that lets you check your credit report at each of the agencies once a week for free."[47]
- The FTC warns: "Other sites may charge you or be fraudulent sites set up to steal your personal information."[47]

Look for:

- Any credit card or line of credit you don't recognize.

- Any “hard inquiry” from a bank you didn’t apply to.
- Wrong addresses, phone numbers, or email addresses. (In the Wells Fargo case, the DOJ said employees changed customers’ contact information so they would not learn about unauthorized accounts.[5])

Step 2: Pull your ChexSystems report

Credit reports usually don’t show checking and savings accounts. A separate kind of report does. **ChexSystems** is a consumer reporting company that, according to the CFPB, “collects and reports data on checking account applications, openings, and closures, including reasons for account closure.”[48]

- ChexSystems “will provide one free report every 12 months if you request it.”[48]
- Request it at **chexsystems.com**, by phone at **800-428-9623**, or by mail to Chex Systems, Inc., Attn: Consumer Relations, P.O. Box 583399, Minneapolis, MN 55458.[48]
- The CFPB says this is especially worth checking “if you are about to open a new bank and/or checking account.”[48]

Look for: any checking or savings account opened in your name that you didn’t open, and any closure you don’t recognize.

Step 3: Read your statements line by line

Once a month, read each bank and credit card statement. Look for:

- **Fees you don't understand.** Overdraft, insufficient funds (NSF), monthly maintenance, "returned item," or "extended overdraft" fees.
- **Repeat fees for one transaction.** Bank of America was found to have charged repeat $35 fees for the same declined transaction.[12]
- **Add-on products.** Monthly charges with names like "protection," "monitoring," "identity," or "plan."[13,17]
- **Transfers you didn't make,** especially small transfers between your own accounts. "Simulated funding" in the Wells Fargo case moved customers' money into unauthorized accounts.[5]
- **Insurance charges on a car loan or mortgage** when you already have insurance.[4]
- **Rewards or bonuses you were promised but never got.**[12]

Also watch your mail and email for welcome letters, new cards, or PIN mailers you didn't ask for.

Example: The card Maria didn't remember

This is a made-up example to show how the steps work.

Maria checks her free weekly credit reports for the first time in years. One report shows a credit card from her own bank, opened 14 months ago, with a $0 balance and one annual fee that was charged, unpaid, and then reported late. She never applied for it.

She calls the bank's number from the back of her debit card and says, "There's a credit card on my credit report that I never applied for. I want it closed, the fee removed, and the late payment taken off my report." She writes down the date, time, and the name of the person she spoke with. Then she follows up in writing to the bank and to the credit bureau (Chapter 8), and keeps copies of everything.

CHAPTER 7

Your Rights in Plain English

Three federal laws do most of the work for ordinary bank customers. You don't have to memorize them. You just need to know they exist, and that **deadlines matter.**

1. Debit cards, ATM withdrawals, and electronic transfers: the Electronic Fund Transfer Act (Regulation E)

This covers ATM transactions, debit card purchases, some online bill payments, and automatic payments from your account.[50]

Your deadline: Notify your bank within **60 days** after it sends the statement showing the problem. If you wait longer, you could have to pay for transactions that happen after that 60-day period.[50]

If your card or PIN is lost or stolen: Report it within **two business days** of discovering the loss and your responsibility is limited to $50 or the amount of the unauthorized transactions, whichever is less. After two business days, you could be responsible for up to $500.[50]

The bank's deadlines:[50]

- It generally has **10 business days** to investigate (20 if the account is less than 30 days old).
- It must correct an error within **one business day** after finding it, and report its findings within **three business days**.
- If it needs more time, it must generally give you a **temporary credit** for the disputed amount (minus up to $50) while it keeps investigating. It can skip the temporary credit if it asked you to confirm a phone report in writing and you didn't do so within 10 business days.
- It must finish within **45 days** in most cases, or **90 days** for foreign transactions, new accounts, and debit card point-of-sale purchases.
- If it decides the transaction was authorized, it must tell you in writing before taking back a temporary credit. You can ask for the information it used to decide.

If you're traveling or in the hospital: the CFPB says that in unusual circumstances like "lengthy travel or hospitalization," the notification periods "must be extended."[50]

2. Credit cards: the Fair Credit Billing Act

This covers billing errors on credit cards and other revolving credit, including unauthorized charges, wrong amounts, and things you didn't accept or didn't receive.[51]

Your deadline: Your letter must **reach the card issuer within 60 days** after the first bill with the error was sent to you. Send it to the address for **billing inquiries**, not the payment address.[51]

Your limit: "Federal law limits your responsibility for unauthorized charges to $50."[51]

The issuer's deadlines: It must acknowledge your complaint in writing within **30 days** (unless the problem is resolved) and resolve the dispute within **90 days**.[51]

While it investigates: You can withhold payment on the disputed amount and related charges, but you must pay the rest of your bill. The issuer can't threaten your credit rating, report you as delinquent, or take legal action to collect the disputed amount during the investigation.[51]

3. Credit and checking account reports: the Fair Credit Reporting Act

If your credit report or ChexSystems report has wrong information, such as an account you never opened, you have the right to dispute it with both the reporting company and the company that supplied the information. The CFPB says that under this law,

companies “must conduct – free of charge – a reasonable investigation of your dispute.”[48]

Furnishers (like your bank) “generally must investigate and respond to your dispute within 30 days.”[49] If they find the information is wrong, they must fix it and tell the credit bureaus.[49]

4. Overdraft opt-in

As described in Chapter 5, banks cannot charge overdraft fees on one-time debit card purchases and ATM withdrawals unless you opted in, and you can withdraw that consent at any time.[35]

> **THE MOST IMPORTANT THING TO KNOW: Put it in writing, and do it fast.** Phone calls are a good start, but the strongest protections depend on deadlines and written notice. Write down every call, and keep a copy of every letter.

CHAPTER 8

How to File a Claim If Your Bank Harmed You, Step by Step

Most problems are solved in the first two or three steps below. Go further only if you need to.

Before you start: gather your documents

Put everything in one folder. The OCC and FDIC ask for this kind of information when you complain.[39,42]

☐ Your full name and mailing address as they appear on your bank's records[39]

☐ The bank's full name and address, and the type of account[39]

☐ The account number (you'll only give the last four digits in most complaints)

☐ The statements showing the problem, with the items circled

☐ Dates and amounts of each transaction or fee involved[42]

☐ A timeline of what happened, in order[42]

☐ Names of bank employees you spoke with, dates, and what they said[39]

☐ Copies of every letter, email, and chat transcript

☐ Your credit report or ChexSystems report pages, if relevant[49]

☐ Proof you had insurance, if you were charged for forced insurance

Keep originals. Send copies.[51,49] Do not include your full Social Security number in complaints.[39]

Step 1: Call the bank and say the magic words

Call the number on the back of your card or on your statement. Say clearly:

- "I'm disputing a transaction I did not authorize." Or: "I'm disputing a billing error." Or: "I'm disputing a fee."
- "Please open a dispute and give me a reference number."

Write down the date, time, name, and reference number.

Step 2: Follow up in writing within your deadline

For debit card and electronic transfer problems, you have **60 days** from the statement date.[50] For credit card billing errors, your letter must **reach the issuer within**

60 days.[51] If you can, send it by certified mail with a return receipt. The FTC suggests this "gives you proof of what the issuer got."[51]

Sample letter: debit card or bank account (Regulation E)

Adapt this to your situation. It is a sample, not legal advice.

> *[Date]*
>
> *[Bank name, dispute or error-resolution address]*
>
> *Re: Notice of error, account ending in [last 4 digits]*
>
> *I am writing to report an error on my account under the Electronic Fund Transfer Act and Regulation E. On my statement dated [date], the following transaction(s) were not authorized by me: [date, amount, description for each]. I did not make, authorize, or benefit from these transactions. [My card and PIN were / were not lost or stolen.]*
>
> *Please investigate, correct the error, and refund the amount of [$___], plus any related fees. Please provide a provisional credit if your investigation takes longer than 10 business days, and send me copies of the documents you rely on in reaching your decision.*

> *I first reported this by phone on [date], reference number [___].*
>
> *Sincerely, [Name, address, phone]*

Sample letter: credit card (Fair Credit Billing Act)

> *[Date]*
>
> *[Card issuer, billing inquiries address]*
>
> *Re: Billing error, account ending in [last 4 digits]*
>
> *I am writing to dispute a billing error under the Fair Credit Billing Act. My statement dated [date] includes a charge of [$___] on [date] from [merchant] that is [unauthorized / for goods I did not receive / the wrong amount / a fee for a product I did not request].*
>
> *Please remove the charge and any related finance charges and fees, and send me written confirmation. Enclosed are copies of [documents].*
>
> *Sincerely, [Name, address, phone]*

The FTC offers a sample letter as well, and the CFPB offers template letters for credit report disputes.[51,49]

Step 3: Dispute your credit and ChexSystems reports, if they were affected

If an account you didn't open shows up on a report:

1. Dispute it with the reporting company: Equifax, Experian, TransUnion, or ChexSystems. Explain what's wrong and why, attach copies of supporting documents, and include the report page with the item circled.[49]
2. Dispute it in writing with the company that reported it (your bank), by certified mail.[49]
3. If the account came from identity theft, the CFPB and FTC point you to **IdentityTheft.gov**.[49]

Step 4: File a complaint with the CFPB

If the bank doesn't fix it, or doesn't respond, file a complaint with the Consumer Financial Protection Bureau. It's free.

How to file:[52]

- Online at **consumerfinance.gov/complaint**. The CFPB says it "usually takes less than 10 minutes."
- By phone at **(855) 411-2372**, 9 a.m. to 6 p.m. ET, Monday through Friday. TTY/TTD: (855) 729-2372.

What happens next:[52]

1. The CFPB sends your complaint to the company (or to another agency if that agency is better able to help).

2. "Companies generally respond in 15 days." Sometimes the company says it's working on it and gives a final response within 60 days.
3. The CFPB publishes information about your complaint in its public database, "without information that directly identifies you."
4. You get 60 days to give feedback on the company's response.

Sample complaint wording

Keep it short, factual, and in order. Adapt it to your situation.

> *On [date], I found [describe problem, e.g., "a $35 fee charged three times for one declined payment"] on my [checking account / credit card] ending in [last 4]. On [date], I called [bank] and spoke with [name], reference [number]. On [date], I sent a written dispute by certified mail (copy attached). As of [date], the bank has [not responded / denied my dispute without explanation].*
>
> *I am asking the bank to: (1) refund [$___]; (2) remove related fees and interest; (3) correct my credit report; and (4) explain in writing how the error happened.*

Step 5: Complain to your bank's own regulator

You can also go to the agency that supervises your bank. Filing directly with the right regulator can be faster.[40]

First, find out who regulates your bank. Use the FDIC's BankFind tool or HelpWithMyBank.gov's "Who Regulates My Bank?" page. If you can't tell, call the OCC at (800) 613-6743.[40,38]

If your bank is...	Complain to	How
A national bank or federal savings association ("N.A." is often in the name)	OCC Customer Assistance Group	HelpWithMyBank.gov; 1-800-613-6743[39]
A state-chartered bank that is a Federal Reserve member	Federal Reserve Consumer Help	federalreserveconsumerhelp.gov; 888-851-1920[41]
A state-chartered bank that is not a Fed member	FDIC	FDIC Information and Support Center at fdic.gov; 1-877-275-3342[42,36]
A federal credit union	NCUA	MyCreditUnion.gov; 1-800-755-1030[36,59]
		Find it through the Conference of State Bank Supervisors (csbs.org)[37]

If your bank is...	Complain to	How
A state-chartered bank	Your state banking department	

The OCC's tips: Try to resolve the problem with your bank first. Its online form allows up to 4,000 characters and six attachments, and it "will time out after 30 minutes of inactivity," so gather your documents before you start. The OCC says it cannot act as your lawyer, act as a court, or "seek monetary compensation" for you.[39] That is true of regulators in general: they can press the bank and spot patterns, but they are not your lawyer.

Your state attorney general can also take complaints about businesses, including banks. The OCC points consumers to state attorneys general and state banking departments for problems with state-chartered banks.[37]

Step 6: Small claims court

If you are owed a specific amount of money and the bank won't pay, small claims court may be an option. The U.S. Navy's legal assistance guide describes it as a "more streamlined process than ordinary civil litigation" for cases where the amount "does not justify the time and expense of a full civil lawsuit." Each state or local court sets its own dollar limit, filing fees, and rules.[53] For example, North Carolina's court system lists a small

claims filing fee of $96, with a form to ask to file as indigent if you can't afford it.[54]

Steps:[53,54]

1. **Send a written demand first.** Briefly describe the dispute, state what you want, and give a reasonable deadline. Keep a copy and proof of delivery.
2. **Use the bank's correct legal name** and pick the right court. Check your court's website or clerk's office for the dollar limit, forms, and fees.
3. **File and serve.** File the claim form, pay the fee (or ask about a waiver), and have the bank served the way the court requires.
4. **Bring organized evidence** to the hearing: statements, letters, receipts, and your timeline.

Watch the clock. The Navy guide warns that "negotiations, complaints to regulators, or military duties generally do not stop" the legal deadlines for filing, unless the law says otherwise.[53] Also, "winning a case results in a judgment, not automatic payment."[53]

What about my arbitration clause? Many bank agreements require arbitration (Chapter 10). But the American Arbitration Association's consumer rules say that consumers "may choose to bring qualifying disputes in small claims court instead of arbitration, even if the claims fall within the parties' arbitration clause."[55] Check

your own agreement to see which arbitration organization and rules it names.

Step 7: Arbitration, if your agreement requires it

If your account agreement has an arbitration clause and your claim is too big for small claims, you may have to bring it in arbitration. Here is how that works with the American Arbitration Association (AAA), one of the organizations commonly named in consumer agreements.

1. **Find the clause.** Search your account agreement (often on the bank's website) for "arbitration." Note which organization and rules it names.
2. **Check the cost.** Under the AAA's 2026 consumer fee schedule, when an individual files, the individual's filing fee is "capped in the amount of $225," unless the agreement says the individual pays less. The business pays its own, larger filing fee.[56]
3. **File.** The AAA's consumer page explains how to start a case.[55]
4. **You can still switch to small claims.** If you file with the AAA and then decide to go to small claims court before an arbitrator is appointed, the AAA closes the case and returns your filing fee.[56]

Arbitration is a formal legal process. If your claim is large, talk to a lawyer or a legal aid office first (see Resources).

Example: The fees that wouldn't come off

This is a made-up example to show how the steps work.

James's debit card purchase is approved when he has $60 in his account. Two days later, after other payments clear, the bank charges him an overdraft fee on that purchase. He never opted in to overdraft coverage on debit card purchases.

He calls the bank and asks for a refund. The representative says no. James sends a short written dispute that same week, attaching his statement. When the bank doesn't respond in two weeks, he files a CFPB complaint online with a clear timeline and a copy of his letter. He also calls the bank and says, "I do not want overdraft coverage on debit card or ATM transactions," and asks for written confirmation.

CHAPTER 9

Finding and Claiming Settlement Money Safely

How the money usually reaches you

- **Often you don't need to do anything.** In many cases, the bank or an administrator sends payments directly. For the Chase and Citi cases, the CFPB said eligible consumers did not have to take any action to get refunds.[16,17]
- **Sometimes there's a claim form.** The CFPB says a claim form "is used when we need additional documentation to verify that you are eligible."[44]
- **Payments can come from the bank, the CFPB, or a "payments administrator."**[43]

Where to look

- **CFPB: "Payments to harmed consumers by case,"** at consumerfinance.gov/enforcement/payments-harmed-consumers. It lists cases and the administrators handling payments.[43,44]
- **FTC: ftc.gov/refunds.** The FTC lists every refund program there, with "the name of the company

issuing payments and a phone number for questions." Most FTC cases don't require a claim.[45]

- **Class action settlements** are separate. They are run by courts, not regulators. A real notice names the case and the court; look the case up on your own rather than clicking links in the notice.

How to tell if a payment or claim is real

1. **Start from the official site, not the message.** For the Equifax settlement, the FTC warned that fake websites appeared "meant to look like the official" claims site and told people to start from the FTC's own page.[46]
2. **Check the administrator.** To verify a CFPB check, the CFPB says to find the case on its payments page and "contact the payments administrator using the contact information listed."[44] The FTC lists the five companies it currently contracts with for refunds: Analytics Consulting, Epiq Systems, JND Legal Administration, Rust Consulting, and Simpluris.[45] Scammers can borrow real names, so always use contact information from the agency's own site.
3. **Never pay to get paid.** The CFPB: "We will never require you to pay money to receive money."[44] The FTC "never requires you to pay upfront fees or asks you for sensitive information, like your Social Security number or bank account information."[45]

4. **Be wary of calls.** About the Equifax settlement, the FTC said "anyone who calls and tries to get you to file a claim is almost certainly a scammer."[46]

Cashing a check doesn't waive your rights. The CFPB says cashing a refund check "doesn't stop you from making any further legal claims that may be available to you."[44] The FTC says the same about its refunds.[45]

Example: The "settlement fee" email

This is a made-up example to show how the scam works.

Ruth gets an email: "You are owed $2,140 from the national bank overdraft settlement. Pay a $49 processing fee to release your funds." It has a government-looking seal and a link.

Ruth doesn't click. She goes to consumerfinance.gov herself and looks at the payments-by-case page. She finds no such case. She remembers that real agencies never charge a fee to send a refund. She deletes the email and reports it at ReportFraud.ftc.gov.

CHAPTER 10

Arbitration Clauses: What You Signed

Many bank and credit card agreements contain a **pre-dispute arbitration clause.** The CFPB explains that such a clause says "either party can require that disputes that may arise about that product or service be resolved through arbitration instead of the court system," and that "either side can generally block lawsuits, including class actions, from proceeding in court."[57]

What the CFPB's 2015 study found

Congress required the CFPB to study arbitration. Its March 2015 report found:[57]

- In the credit card market, "card issuers representing more than half of all credit card debt have arbitration clauses – impacting as many as 80 million consumers." In checking accounts, "banks representing 44 percent of insured deposits have arbitration clauses."
- Few consumers used arbitration. On average, consumers filed roughly 600 arbitration cases and

1,200 individual federal lawsuits per year in the markets studied.

- About 32 million consumers on average were eligible for relief through consumer finance class action settlements each year.
- When credit card issuers with an arbitration clause faced a class action, they "invoked the arbitration clause to block class actions 65 percent of the time."
- More than three-quarters of consumers surveyed didn't know whether their card agreement had an arbitration clause, and "fewer than 7 percent" of those covered realized it limited their ability to sue.

The same law forbids arbitration clauses in mortgage contracts.[57]

What happened next

The CFPB issued a rule in 2017 to stop companies from using arbitration clauses to block class actions. Congress overturned it, and the President signed the resolution on November 1, 2017.[34,57] So arbitration clauses remain legal in bank and card agreements.

What you can do

- **Read your agreement.** Search it for "arbitration" and "class action."

- **Check for an opt-out.** Read whether your agreement offers a way to reject the arbitration clause, and if so, how and by when.
- **Remember small claims.** As described in Chapter 8, AAA consumer rules let either side take qualifying claims to small claims court instead.[55]
- **Complaints to regulators are not lawsuits.** An arbitration clause does not stop you from filing a complaint with the CFPB, the OCC, or another regulator.

CHAPTER 11

Switching Banks, or Moving to a Credit Union

Why some people choose credit unions

According to the NCUA's consumer site, credit unions are "owned and controlled by the people, or members, who use their services." Members elect a volunteer board, and "profits made by credit unions are returned back to members in the form of reduced fees, higher savings rates and lower loan rates."[58] Whether a particular credit union has lower fees than your bank is something to check yourself, line by line.

Credit unions are not automatically better. Navy Federal Credit Union was the subject of a 2024 CFPB order over overdraft fees (Chapter 3).[29] The NCUA site also notes that federal consumer financial protection laws apply to credit unions.[58]

Is my money safe?

- At a **federally insured credit union**, the National Credit Union Share Insurance Fund insures individual

accounts up to $250,000. It is “backed by the full faith and credit of the United States.”[59]

- Federally insured credit unions must display the official NCUA sign. A few state-chartered credit unions use **private** insurance, which is not backed by the U.S. government. The NCUA says to confirm federal insurance with its **Credit Union Locator**.[59]
- The NCUA does not insure stocks, bonds, mutual funds, annuities, or crypto, even if sold at a credit union.[59]
- At a bank, look for FDIC insurance. Check any bank on the FDIC’s BankFind tool.[40]

How to join

The NCUA’s steps: locate a credit union with its Credit Union Locator, check the membership requirements, and open a share account.[58] You may qualify through your employer, family, where you live, or a group you belong to.[58]

How to switch without bouncing a payment

1. **Open the new account first.** Don’t close the old one yet.
2. **Make a list of everything connected to the old account:** paychecks, Social Security or other benefits, rent or mortgage, utilities, insurance, subscriptions, and payment apps.

3. **Move deposits first,** then automatic payments, one by one.
4. **Leave a cushion** in the old account for a month or two, and watch for stray charges.
5. **Close the old account in writing,** get written confirmation, and check that the balance is $0 so no fees pile up.
6. **Check your ChexSystems report** a few months later to confirm the closure is reported correctly.[48]

APPENDIX

The One-Page Bank Protection Checklist

Print this page. Free to copy and share.

THE NUMBER ONE RULE: Check your accounts, and put every dispute in writing before the deadline.

Every month

- ☐ Read every bank and credit card statement line by line.
- ☐ Question fees, add-ons, repeat charges, and transfers I didn't make.
- ☐ Check that promised rewards and bonuses showed up.

Every few months

- ☐ Pull free credit reports at **AnnualCreditReport.com**.
- ☐ Once a year: request my free **ChexSystems** report (800-428-9623).
- ☐ Look for accounts, inquiries, or contact details I don't recognize.

Know my deadlines

Debit/ATM/transfers (Reg E): tell the bank within 60 days of the statement; lost card within 2 business days · **Credit cards (FCBA):** letter must reach the billing-inquiries address within 60 days · **Credit report errors:** dispute with the bureau and the bank

If something is wrong

- ☐ Call the bank. Say "dispute." Get a reference number.
- ☐ Send a written dispute (certified mail if possible). Keep copies.
- ☐ No fix? File at **consumerfinance.gov/complaint** (855-411-2372).
- ☐ Also file with my bank's regulator (OCC, Fed, FDIC, NCUA, or state).
- ☐ Still owed money? Consider small claims court.

Settlement money: Start at consumerfinance.gov or ftc.gov/refunds · Never pay a fee to get paid · Never give my SSN or bank login to a caller

Help: CFPB **855-411-2372** · OCC **1-800-613-6743** · Fed **888-851-1920** · FDIC **1-877-275-3342** · NCUA **1-800-755-1030**

From When Banks Cheat You *by D.A. Williams. Sources are in the book's Notes. Not legal advice.*

RESOURCES

Where to Get Help

All of these were checked in October 2026. Phone numbers and websites can change. Look up any organization's official website yourself.

This book is not legal or financial advice. For legal help, contact a lawyer or your local legal aid office.

To complain

- **Consumer Financial Protection Bureau:** consumerfinance.gov/complaint or (855) 411-2372.[52]
- **OCC (national banks):** HelpWithMyBank.gov or 1-800-613-6743.[39]
- **Federal Reserve Consumer Help:** federalreserveconsumerhelp.gov or 888-851-1920.[41]
- **FDIC:** FDIC Information and Support Center at fdic.gov, or 1-877-275-3342.[42]
- **NCUA (credit unions):** MyCreditUnion.gov or 1-800-755-1030.[36]
- **State banking departments:** csbs.org.[37]
- **FTC (scams, including fake settlement offers):** ReportFraud.ftc.gov or 1-877-382-4357.[36,45]

- **Identity theft:** IdentityTheft.gov.[49]

To check your records

- **Credit reports:** AnnualCreditReport.com. **ChexSystems:** chexsystems.com or 800-428-9623.[47,48]
- **Who regulates my bank:** HelpWithMyBank.gov or the FDIC's BankFind.[38,40]

To find refund and settlement money

- **CFPB payments by case:** consumerfinance.gov/enforcement/payments-harmed-consumers.[43]
- **FTC refunds:** ftc.gov/refunds.[45]

Free legal help

- **Legal aid:** The Legal Services Corporation's website, lsc.gov, can help you find free civil legal aid if you qualify.[60]
- **Servicemembers:** your local JAG legal assistance office.[44]

Learn more

- **Companion guides by D.A. Williams:** *Protect Your Parents*, *After a Scam*, *Is That Really Their Voice?*, *Apps That Actually Help*, *Stop Before You Pay*, *Naked Short Selling*, *Disability Benefits Made Simple*, and *Don't Get Doxxed*, free wherever you found this book.

Notes

Web addresses were checked in October 2026. Quotations are from the agency or document named. Where an order says a bank consented without admitting or denying the findings, the findings are the agency's, not the bank's.

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